manager may apply for permit amendments to reduce requirements under this code related to the TSF or dam.

(5) The manager must apply for a permit from the chief permitting officer when a closed TSF or dam is to be altered or used for some other purpose than storage of tailings.

Waste Dumps, Pits and Underground

Major Dumps

10.7.1 (1) Major dumps must be operated and monitored in accordance with the Interim Guidelines of the British Columbia Mine Waste Rock Pile Research Committee.

(2) The manager must annually provide to the chief inspector a document that describes the performance of high-risk dumps referred to in subsection (1), by March 31 of the following year.

(3) The manager must

(a) ensure that reasonable efforts are made to engage with each affected First Nation in order for each First Nation to identify if it wants to receive the document referred to in subsection (2), and

(b) provide a copy of the most recent document to each First Nation that identifies under paragraph (a) of this subsection that it wants to receive it, in accordance with the timeframe applicable with respect to the chief inspector.

Spontaneous Combustible Material

10.7.2 Material with a high probability of spontaneous combustion must be placed in a separate dump.

Materials Inventory

10.7.3 (1) Where required for the control of metal leaching and acid rock drainage, the owner, agent or manager must maintain an inventory of identified material that includes the following:

(a) composition, mass, volume, surface area and storage locations;

(b) history and timing of excavation;

(c) monitoring data;

(d) any other information required by the chief inspector.

(2) On closure, the manager must submit the material inventory to the chief inspector.

Excavations Near Property Boundaries

10.7.4 The excavation of soil material, such as clay, silt, earth, sand or gravel, in a surface mine must not be carried on within a setback distance of at least 5 metres horizontal from the vertical plane of the property boundary, and

(a) there must be no excavation of soil material below a surface sloping downwards into the property from the inside edge of the setback no steeper than 1.5 horizontal to 1 vertical, and
(b) material that sloughs from within this distance must not be removed without the written approval of the inspector.

Excavation Before April 1, 1997

10.7.5 The chief inspector may direct that any excavation that exists in soil materials on or before April 1,1997 will not be considered to be out of compliance for not meeting setback requirements providing that all further excavation is conducted in a manner consistent with the requirements of section 10.7.4.

Alternative Setbacks and Slopes

10.7.6 Despite sections 10.7.4 and 10.7.5, the chief permitting officer may approve a mine plan, prepared by a professional engineer, with alternative setbacks and slopes that ensure that the property boundary will be adequately protected.

Rock Excavation

10.7.7 Rock must not be excavated within a distance of 5 metres from the property boundary.

Waiver by Adjoining Property Owners

10.7.8 The owners of adjoining properties may, by agreement in writing, waive the provisions of sections 10.7.4, 10.7.5 and 10.7.7.

Mine Closure

Notice Required

10.8.1 The owner, agent or manager must provide written notice of not less than 7 days to an inspector of intention to stop work in, on, or about a mine.

Cessation of Operations

10.8.2 (1) If a mine ceases operation, the owner, agent or manager must
(a) continue to carry out the conditions of the permit, and
(b) carry out a program of site monitoring and maintenance.

(2) If a mine ceases operation for a period longer than one year, the owner, agent or manager must
(a) apply for an amendment to the permit setting out a revised program for approval by an inspector,
(b) identify the hazards and provide detailed engineered plans and drawings respecting the hazards to local emergency agencies, and update the drawings as required, and
(c) if practicable, make the plans and drawings available on site in a conspicuous location.

Filing of Plans

10.8.3 (1) On the closure of a mine, the owner, agent or manager must, within 90 days, file with the chief inspector accurate drawings, on a scale consistent with good engineering practice, showing

(a) on a plan view,

(i) the surface and underground workings of the mine up to the time of closure and the boundaries of the mineral claims, licenses or leases in which the workings are situated, and

(ii) identification of underground workings that come to within 25 metres of the surface,

(b) a general long section and several cross-section views of the surface and underground mine workings, and

(c) any other plans that may be requested by the chief inspector.

(2) The filed plans must be preserved as a permanent record in the office of the chief inspector.

Securing Openings

10.8.4 When a mine is closed for an indefinite period, or otherwise left unattended for any length of time, the owner, agent or manager must take all practicable measures to prevent inadvertent access to mine entrances, pits and openings that are dangerous by reason of their depth or otherwise, by unauthorized persons and ensure that the mine workings and fixtures remain secure.

Major Dumps

10.8.5 The long-term stability of exposed slopes of any major dump must meet the criteria provided in the Interim Guidelines of the British Columbia Mine Waste Rock Pile Research Committee at the time of permitting or as amended by the chief inspector.

Ongoing Management Requirements

10.8.6 Where a mine requires ongoing mitigation, monitoring or maintenance, the owner, agent or manager must submit a closure management manual that

(a) describes and documents key aspects of the ongoing mitigation, monitoring and maintenance requirements, and

(b) tracks important changes to components of the system that affect long-term mitigation, monitoring and maintenance requirements.

Security

10.8.7 On the closure of a mine, and on the chief inspector being satisfied that some or all of the conditions of the permit have been complied with, the person who deposited a security under section 10 (4) or (5) of the *Mines Act* must be entitled to a refund of some or all of the security and any

accumulated interest, less any amount paid out under section 10.1 (2) (c) of the *Mines Act*.

Application for Security Release

10.8.8 An application for security release or a partial security release, that details the reclamation activities that have been completed under the requirements of the *Mines Act*, the code and approved reclamation plan, must be submitted to the chief inspector.

Reclamation Standards

Reclamation Defined

10.9.1 It is the duty of every owner, agent and manager to institute and, during the life of the mine, to carry out, a program of environmental protection and reclamation, in accordance with the standards described in sections 10.9.4 to 10.9.21.

Pre-legislation Disturbances

10.9.2 Where environmental disturbance occurred at a site prior to the enactment of reclamation legislation in 1969, and has remained inactive since this time, the portion of environmental disturbance, which occurred before the enactment of reclamation legislation in 1969, is exempt from the re-vegetation provision.

Exclusions

10.9.3 A reclamation standard prescribed under sections 10.9.4 to 10.9.21 does not apply if

(a) a mine is specifically excluded by a condition of its permit from complying with a particular standard, or

(b) a disturbance created by a mining activity has been reclaimed, inspected and found to be satisfactory to an inspector.

Land Use

10.9.4 The land surface must be reclaimed to an end land use approved by the chief permitting officer that considers previous and potential uses.

Capability

10.9.5 Excluding lands that are not to be reclaimed, the average land capability to be achieved on the remaining lands must not be less than the average that existed prior to mining, unless the land capability is not consistent with the approved end land use or compromises long-term physical or geochemical stability, or both.

Long-term Stability

10.9.6 Land, watercourses and access roads must be left in a manner that ensures long-term physical and geochemical stability.

Re-vegetation

10.9.7 On all lands to be re-vegetated, land must be re-vegetated to a self-sustaining state using appropriate plant species.

Growth Medium

10.9.8 On all lands to be re-vegetated,

(a) the growth medium must satisfy land use, capability and water quality objectives, and

(b) all surficial soil materials removed for mining purposes must be saved for use in reclamation programs unless these objectives can be otherwise achieved.

Landforms

10.9.9 Where practicable, land and watercourses must be reclaimed in a manner that is consistent with the adjacent landforms.

Structures and Equipment

10.9.10 Prior to abandonment, and unless exempted by the chief inspector,

(a) all machinery, equipment and building superstructures must be removed,

(b) concrete foundations must be covered and re-vegetated, and

(c) all scrap material must be disposed of in a manner acceptable to an inspector.

Dumps

10.9.11 Dumps must be reclaimed to ensure long-term stability and long-term erosion control.

Watercourses

10.9.12 Watercourses must be reclaimed to a condition that ensures

(a) drainage is restored either to original watercourses or to new watercourses that will sustain themselves without maintenance, and

(b) the level of productive capacity must not be less than existed prior to mining, unless the owner, agent or manager can provide evidence which demonstrates, to the satisfaction of the chief inspector, the impracticality of doing so.

Open Pits

10.9.13 (1) Pit walls constructed in overburden must be reclaimed in the same manner as dumps unless an inspector is satisfied that to do so would be unsafe or conflict with other proposed land uses.

(2) Pit walls, including benches constructed in rock, or steeply sloping footwalls, are not required to be re-vegetated.

(3) Where the pit floor is free from water, and safely accessible, vegetation must be established.

(4) Where the pit floor will impound water and is not part of a permanent water treatment system, provision must be made to create a body of water where use and productivity objectives are achieved.

Blocking Access Road

10.9.14 All access roads to surface areas of the mine that may be dangerous must be effectively blocked to prevent inadvertent vehicular access.

Securing Openings

10.9.15 (1) All shafts, raises, stope openings, adits or drifts opening to the surface must be either capped with a stopping of reinforced concrete or filled with material so that subsidence of the material will not pose a future hazard.

(2) In the case of shafts or raises, the stopping must be

(a) secured to solid rock or to a concrete collar secured to solid rock, and

(b) capable of supporting a uniformly distributed load of 12 kPa or a concentrated load of 24 kN, whichever is greater.

(3) Where there is evidence of, or a potential for, use by wildlife, mine openings may be fitted with a barrier that allows wildlife passage but prevents human entry.

Drains

10.9.16 When mine openings are permanently closed and where it may be possible for mine water to build dangerous pressures and cause a blow-out of the fill or concrete with sudden and dangerous force, a permanent and effective drain must be installed.

Metal Uptake

10.9.17 When required by the chief inspector, vegetation must be monitored for metal uptake.

Ecological Risk Assessment

10.9.18 (1) When required by the chief inspector, the owner, agent or manager must commission an ecological risk assessment.

(2) Where there is a significant ecological risk, reclamation procedures must ensure that levels are safe for plant and animal life and, where this cannot be achieved, other measures must be taken to protect plant and animal life.

Disposal of Chemicals and Reagents

10.9.19 Chemicals or reagents that cannot be returned to the manufacturer must be disposed of in compliance with municipal, regional, provincial and federal statutes.

Water Quality

10.9.20 If water quality from any component of the mine results in exceedances of applicable provincial water quality standards in the receiving environment, when required by the chief inspector, remediation strategies must be implemented for as long as is necessary to mitigate the problem.

Monitoring

10.9.21 The owner, agent or manager must undertake monitoring programs, as required by the chief inspector, to demonstrate that reclamation and environmental protection objectives including land use, productivity, water quality and stability of structures are being achieved.

Release of Obligations

10.9.22 If all conditions of the *Mines Act*, code and permit have been fulfilled to the satisfaction of the chief inspector and there are no ongoing inspection, monitoring, mitigation or maintenance requirements, the owner, agent or manager will be released from all further obligations under the *Mines Act*.

THIS IS NOT A COMPREHENSIVE COMPILATION OF ALL CODE REQUIREMENTS.

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